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Case Number: NAIH-1248-8/2023.
Subject: Decision, Order
Previous Case Number: NAIH-6478/2022.

D E C I S I O N

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) has initiated a data protection authority procedure against [...] (headquarters: [...]; hereinafter: Respondent) based on the application submitted by [...] (address: [...]; hereinafter: Applicant), represented by [...] ([...] headquarters: [...]; hereinafter: Representative), received by the Authority on July 23, 2022. The procedure concerns the improper provision of access to the data of a capital-saving life insurance contract concluded by the Applicant's deceased mother. The Authority makes the following decisions in this data protection authority procedure:

- I.
The Authority establishes at the request of the Applicant that the Respondent has violated Article 15(1) of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: GDPR) regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC.
- II. The Authority establishes ex officio that the Respondent has violated the principle of data minimization as set out in Article 5(1)(c) of the GDPR.
- III. The Authority orders the Respondent ex officio to delete the complete inheritance transfer decree numbered [...] provided by the Applicant from all its systems, including its email system, within 15 days from the date this decision becomes final!
- IV. The Authority issues a warning to the Respondent for the violations established in points I and II.

O R D E R

The Authority terminates the procedure regarding the Applicant's request for the Authority to compel the Respondent to fulfill the access request.

The Authority warns the Respondent that the data related to the disputed data processing cannot be deleted or destroyed until the expiration of the deadline for initiating a lawsuit against the decision or, in the case of an administrative lawsuit, until the court's final decision.

The measure prescribed in point II must be carried out by the Respondent within 15 days following the expiration of the deadline for legal remedies against this decision, and the Respondent must promptly provide evidence of its execution to the Authority, along with supporting documents.

There is no administrative remedy against this decision and order, but it can be contested in an administrative lawsuit filed with the Metropolitan Court within 30 days from the date of communication. The lawsuit must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the lawsuit. In the lawsuit against the order, the court will proceed in a simplified manner, outside of a hearing. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the case is subject to the payment of court fees. Legal representation is mandatory in the proceedings before the Metropolitan

Court.

REASONING

I. Background of the case, subject of the procedure

(1)

The Applicant's request for a data protection authority procedure was received by the Authority on July 23, 2022. The Applicant stated in the request that her mother [...] (place and date of birth: [...]; maiden name: [...]) has passed away, and based on the inheritance transfer decree, the inheritance was transferred to the testamentary heir, namely the Applicant, according to the will.

(2)

Subsequently, the Applicant became aware of the life insurance contract labeled [...] concluded between the deceased and the Respondent on March 1, 2010. The one-time insurance premium of [...] HUF was paid on February 9, 2010, from the deceased's bank account number [...] held at [...] Bank.

(3)

Following her awareness of this capital-saving life insurance, the Applicant contacted [...] Bank, from which she received information that the amount corresponding to the insurance sum had not been credited to the account designated as the payment account in the contract.

(4)

The Applicant then contacted the Respondent. On March 3, 2021, she requested information in writing about the fate of the paid amount. She attached, among other things, the bank statement proving the payment, which included the offer number, as well as the notary's excerpt of the inheritance transfer decree. In a letter dated March 5, 2021, the Respondent informed the Applicant that the amount withdrawn on February 9, 2010, related to the insurance contract with the payer identification number [...] – this number is also listed as the offer number in the Respondent's records – was terminated due to cancellation within 30 days. Furthermore, the Respondent informed the Applicant that the established data retention period for the contract had expired, and the purpose of data processing had ceased concerning the given contract.

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In relation to this, the Respondent does not maintain identifiable personal data concerning the contract.

(5)

According to the bank statements from the account designated as the payout account at [...] Bank, covering the period from December 24, 2009, to May 21, 2010, no refund of the insurance amount was made to this account following the termination of the contract.

(6)

On April 6, 2021, the Applicant sent a letter from the [...] email address to the [...] email address, again requesting information regarding the fate of the contractual amount paid by her mother. In this letter, she stated that after her mother's death, she found a “[...] bank document, which indicated an amount that we were not aware of.” Following this, according to her statement, she contacted [...] Bank, which confirmed that an amount of [...] forints was transferred from her mother's account to the Respondent; however, there is no record of the money returning to the account, and therefore she requested the Respondent to investigate what happened to the insurance premium that was to be refunded from the contract terminated by her mother.

(7)

On April 15, 2021, the Respondent informed her that it could only provide substantive information if she attached the inheritance transfer decree, to which the Applicant partially complied on June 10, 2021, meaning she did not attach the complete inheritance transfer decree, but only a part of it, which included the details of the notary who issued the inheritance transfer decree, the decree number, the date on which the deceased's will was made, that the Applicant was designated as the testamentary

heir, as well as the notary's statement that the will was considered formally valid, and that the deceased's will was complete, covering all movable and immovable property, and that the Applicant, as the testamentary heir, requested the transfer of the inheritance to herself according to the will.

(8)

In this letter dated June 10, 2021, the Applicant specified the date of the transfer of the insurance amount to the Respondent, the amount, the policy number – [...] – and the case number – [...] – as well as that, according to the information received from the Respondent, the contract was terminated by her mother's notice within 30 days from the receipt of the policy; however, she found no trace of the refund of the insurance amount at any of the account-holding banks.

(9)

In a letter dated June 23, 2021, the Respondent again informed the Applicant of the necessity of sending the complete inheritance transfer decree and generally informed her that if 8 years had already passed since the termination of the contract, which is the established deadline for data retention, the purpose of data processing had ceased. Following the cessation of the purpose of data processing, the previously processed data no longer appears in the Respondent's records in an identifiable manner, and therefore there is no possibility to produce and send the requested data. The Applicant provided the Respondent with the complete inheritance transfer decree on July 4, 2021.

(10)

In a letter dated July 7, 2021, the Respondent informed the Applicant that the contract numbered [...] was terminated on March 22, 2010, due to a notice of termination within 30 days from the receipt of the policy; however, it does not have the data requested by the Applicant, as eight years have elapsed since the termination of the contract.

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(11) The Representative, on behalf of the Applicant, contacted the Respondent on November 16, 2021, and again on March 23, 2022, requesting information regarding the fate of the insurance amount paid by the Applicant's mother. He emphasized that the Applicant is considered an interested party according to the Act, as he was designated as the beneficiary in the event of death in the terminated capital savings life insurance contract.

(12) In a letter dated November 30, 2021, and another dated April 14, 2022, the Respondent confirmed his previous statement and indicated that he could not provide information regarding the method and destination of the payment.

(13) In contrast to the contents of the Respondent's response, the Applicant assumed that the Respondent manages data related to the contract of the Applicant's deceased mother, as he identified the testator based on the inheritance transfer decree and considered the Applicant as the heir of the testator. Furthermore, he was able to provide information about the contract number and the exact date of termination of the contract. Consequently, the Applicant operates under the assumption that financial and transactional data related to the contract are also available to the Respondent.

(14) The Applicant indicated the infringement of his right to access data arising before the opening of the inheritance, as stipulated in Section 14(b) of the Information Act.

(15) The Applicant requested that the Authority compel the Respondent to provide the data he requested – when, in what manner, and to which account the insurance premium was refunded – for the fulfillment of the access request.

II. Facts

(16) A life insurance contract designated as [...] was established between the Applicant's mother and the Respondent on March 1, 2010. The lump-sum insurance premium of [...] forints was paid on February 9, 2010, from the testator's account number [...] held at [...] Bank. According to the insurance policy number [...], the natural person contracting the life insurance outside the scope of self-employment or business activities may terminate the life insurance contract with a duration

exceeding six months within 30 days of receiving the policy confirming the establishment of the contract, by written notice – without justification. According to point 12 of the document titled Special Conditions of the [...] Life Insurance, in the case of termination as stipulated in Section 2 of the General Terms and Conditions of Life Insurance, if the termination request is received by the insurer before the start of risk coverage, the insurer shall refund the amount of the paid insurance premium reduced by the administrative costs related to the termination, amounting to 4000 forints, to the contractor.

(17) According to the data sheet associated with the [...] life insurance, the start of risk coverage was on March 22, 2010. It was also indicated that in the event of the contract's failure, the refund of the paid premium should be made to the Applicant's mother's account number [...] held at [...] Bank. According to the Respondent's information, the Applicant's mother terminated the contract on March 22, 2010.

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(18) The Applicant informed the Authority that based on the offer number provided by the Applicant in the letter dated March 3, 2021, the data of the insurance contract could be found in the contract registry system for investment-linked life insurance contracts. Accordingly, on March 5, 2021, the Applicant was informed that the insurance contract associated with the referenced offer number was terminated by cancellation within 30 days from the conclusion of the contract. The Applicant could not identify the contracting party, i.e., the Applicant's mother, based on the insurance contract found in the registry system using the offer number, as the identity of the contracting party had already been anonymized on September 19, 2020, according to the attached log file (NAIH-1248-3/2023. document annex), where the name field in the registry system shows "masked client," and several personal data points were also anonymized, meaning they were modified with random/static/null value data, thus the identification of the contract was carried out solely based on the offer number. After anonymization, the contract registry system still contains the contracting party's incomplete address – [...] –, the offer number, the contracting party's identifier, i.e., the customer number, the amount of the insurance premium, its currency, and the contracting party's date of birth – [...] – which is masked, non-real data according to the Applicant's statement, as the inheritance transfer decree states that the Applicant's mother was born on [...].

(19) In the Applicant's "system for recording services related to contracts" [...], it was evident from the data recorded about the contract that the contract was canceled by the client within thirty days from the conclusion of the contract, and the paid premium – after deducting HUF 4,000 for administrative and policy issuance costs as per the contractual terms – was transferred on March 22, 2010, to the bank account number [...] held at [...] Bank. In this registry, the name of the Applicant's mother was also anonymized, but it contains the claim number, the customer identifier, the contract number, the type of contract, and data regarding the refund of the paid insurance premium.

(20) In the Central Customer Registry, searching for the customer identifier number shows "bN Masked pd Client NULL" under the customer's name, "Masked Mother" under the mother's name, [...] under the place of birth, " [...]" as the date of birth, "iT Masked do Client" under the birth name, and " [...]" as the permanent address. The Applicant stated regarding the data of place and date of birth that these are not real, modified data used in masking. This statement is only partially accurate, as the inheritance transfer decree states that the actual place of birth of the Applicant's mother was [...].

(21) The Applicant acknowledged that an employee acted improperly when, despite the extract issued by the notary regarding the inheritance transfer decree submitted by the Applicant on March 3, 2021, the requested information was not provided. According to the Applicant's statement, on January 16, 2023, the Applicant was informed about the date of the refund of the insurance amount and the recipient's account number. To support this, a copy of the letter sent to the Applicant was attached.

(22) The Applicant informed the Authority that the recording of data related to payments is carried out in the [...] system in such a way that it is suitable for personal identification.

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Data will be anonymized after the data retention period – 8 years – has elapsed; however, payment data will not be anonymized and will remain visible thereafter.

(23) The Applicant informed the Authority regarding its anonymization practices that it stores its clients' data in the Central Customer Registry system. The [...] application retrieves the necessary customer data (e.g., name, date of birth, address, phone number) from the Central Customer Registry, thus the anonymization is performed by the Applicant in the Central Customer Registry.

(24) In the case of insurance contracts, anonymization will occur for natural person clients only if all contracts in which they appear in any capacity (contracting party, insured, beneficiary) have been terminated for at least 8 years; if for at least 8 years the reserve for any claim in which they appear in any capacity (insured, injured party, agent) has been 0 HUF; if there has been no open claim in which they appear in any capacity for at least 8 years; if the last payment related to the contract was made at least 8 years ago; if the date of the contract cancellation entry occurred at least 2 months ago; if the contracting party is not in an employment relationship with the [Applicant], and the client's data has not previously been selected for anonymization.

(25) If all these conditions are met, the personal, client-identifying data to be anonymized will be selected from the Central Customer Registry and then forwarded to the system performing the anonymization. The [Applicant] employs several procedures for anonymization, such as fixed-value substitution (the new values will be static data); automatic value creation (using regular expressions to generate new random values); and filling data fields with null values.

(26) The log file prepared regarding the anonymization of the Applicant's personal data has been made available to the Authority by the Applicant.

III. Applicable Legislation

(27) According to Article 2(1) of the GDPR, the GDPR must be applied to the data processing in this case.

(28) GDPR (26) recitals: The principles of data protection must be applied to all information relating to an identified or identifiable natural person. Pseudonymized personal data, which can be linked to an identifiable natural person by the use of additional information, should be considered data relating to an identifiable natural person. In determining the identifiability of a natural person, all methods should be considered – including, for example, designation – that can reasonably be assumed to be used by the data controller or another person for the direct or indirect identification of the natural person. In determining which means can reasonably be assumed to be used for the identification of a specific natural person, all objective factors must be taken into account, including the costs and time required for identification, taking into account the technologies available at the time of data processing and the development of technology. Accordingly, the principles of data protection do not need to be applied to anonymous information, namely to such...

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information that does not relate to an identified or identifiable natural person, as well as personal data that has been anonymized in such a way that the data subject is no longer identifiable or can no longer be identified. This regulation therefore does not apply to the processing of such anonymous information, including statistical or research purposes.

(29) According to the preamble (27) of the GDPR, the GDPR does not need to be applied to personal data concerning deceased persons; the processing of personal data of deceased persons may be regulated by the Member States.

(30) GDPR preamble (64): The data controller shall take all reasonable measures to verify the identity of the data subject making the request for access, particularly in relation to online services and online identifiers. The data controller may not retain personal data solely for the purpose of being able to respond to potential requests.

(31) GDPR Article 11: (1) If the purposes for which the data controller processes personal data do not

or no longer require the identification of the data subject by the data controller, the data controller is not obliged to retain, obtain, or process additional information for the sole purpose of identifying the data subject in order to comply with this regulation.

(2) If in the cases mentioned in paragraph (1) of this article the data controller can demonstrate that it is not in a position to identify the data subject, it shall inform the data subject accordingly, if possible, in an appropriate manner. In such cases, Articles 15 to 20 shall not apply, unless the data subject provides additional information enabling identification for the purpose of exercising rights under the aforementioned articles.

(32) GDPR Article 12, paragraph (6): Without prejudice to Article 11, if the data controller has reasonable doubts concerning the identity of the natural person making a request under Articles 15 to 21, it may request additional information necessary to confirm the identity of the data subject.

(33) GDPR Article 15, paragraph (1): The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and if such processing is occurring, the data subject has the right to access the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, including particularly third country recipients and international organizations;
- d) where applicable, the envisaged period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;
- e) the data subject's right to request from the data controller rectification, erasure, or restriction of processing of personal data concerning them, and to object to such processing.

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- f) the right to lodge a complaint with a supervisory authority;
- g) if the data has not been collected from the data subject, all available information regarding the source;
- h) the fact of automated decision-making as referred to in Article 22(1) and (4), including profiling, as well as at least in these cases understandable information on the logic involved and the significance of such processing for the data subject, as well as the expected consequences for the data subject.

(34)

GDPR Article 58(2)(g): In exercising its corrective powers, the supervisory authority shall:

- g) order the rectification or erasure of personal data, or the restriction of processing, in accordance with Articles 16, 17, and 18, and shall order the notification of those recipients to whom the personal data have been disclosed, in accordance with Article 17(2) and Article 19;

(35)

GDPR Article 77(1): Without prejudice to any other administrative or judicial remedy, every data subject shall have the right to lodge a complaint with a supervisory authority – in particular in the Member State of their habitual residence, their place of work, or the place of the alleged infringement – if the data subject considers that the processing of personal data relating to them infringes this Regulation.

(36)

Infotv. Section 2(2): The processing of personal data falling under the scope of Regulation (EU) 2016/679 of the European Parliament and of the Council (hereinafter: General Data Protection Regulation) shall be governed by the General Data Protection Regulation with the supplements specified in Chapters III-V and VI/A, as well as in points 3, 4, 6, 11, 12, 13, 16, 17, 21, 23-24 of Section 3, in Section 4(5), in Sections 5(3)-(5), (7) and (8), in Section 13(2), in Section 23, in Section 25, in Section 25/G(3), (4) and (6), in Section 25/H(2), in Section 25/M(2), in Section 25/N, in Section 51/A(1), in Sections 52-54, in Sections 55(1)-(2), in Sections 56-60, in Sections 60/A(1)-(3) and (6), in Section 61(1)(a) and (c), in Sections 61(2) and (3), in Section 61(4)(b) and in Sections 61(6)-(10), in

Sections 62-71, in Section 72, and in Sections 75(1)-(5), in Section 75/A, and in the Annex 1.

(37)

According to Infotv. Section 60(1), in order to ensure the enforcement of the right to the protection of personal data, the Authority may initiate a data protection authority procedure ex officio. The rules of Act CL of 2016 on the General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure with the supplements specified in the Infotv. and with the deviations according to the General Data Protection Regulation.

(38)

Infotv. Section 61(1)(a): In its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in the General Data Protection Regulation in connection with the data processing operations defined in Section 2(2) and (4), thus in particular, it may order, upon request or ex officio, the deletion of unlawfully processed personal data to be carried out in the manner determined by it, or may restrict the processing in other ways temporarily or permanently.

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(39)

Infotv. Section 61, paragraph (6): The data subject data related to the disputed data processing cannot be deleted or destroyed until the deadline for initiating a lawsuit against the decision has expired, or in the case of initiating an administrative lawsuit, until the court's final decision.

(40)

Infotv. Section 75/A: The Authority exercises its powers as set out in Article 83, paragraphs (2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly by addressing the first violation of the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or data processor in accordance with Article 58 of the General Data Protection Regulation.

(41)

The rules of the Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority's procedure, with the supplements defined in the Infotv. and the deviations according to the General Data Protection Regulation.

(42)

According to Section 47, paragraph (1), point c) of the Ákr., the authority shall terminate the procedure if it has become unnecessary.

(43)

Section 143, paragraph (4) of Act LXXXVII of 2014 on Insurance Activities (hereinafter: Bit.): In relation to data that can be associated with a deceased person, the rights of the data subject may also be exercised by the heir of the deceased or the designated beneficiary in the insurance contract.

(44)

According to Section 169, paragraphs (1)–(2) of Act C of 2000 on Accounting (hereinafter: Sztv.):

(1) The economic operator is obliged to keep the annual report, the business report, and the supporting inventory, evaluation, general ledger extract, as well as the journal ledger or other records compliant with the requirements of the law in a readable form for at least 8 years.

(2) The accounting document supporting the accounting records directly and indirectly (including general ledger accounts, analytical and detailed records) must be kept in a readable form for at least 8 years in a retrievable manner based on references to accounting notes.

(45)

According to Section 166, paragraph (1) of the Sztv., an accounting document is any document issued or prepared by the economic operator, or by a natural person or another economic operator in business or other relations with the economic operator (invoice, contract, agreement, statement, credit institution document, bank statement, legal provision, or any other document that can be classified as

such) – regardless of its printing or other production method – which supports the accounting of the economic event.

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IV. Decision

IV.1. Identification of the Applicant and the Principle of Data Minimization

(46) Article 12(6) of the GDPR requires data controllers to request additional information necessary to confirm the identity of the data subject if they have reasonable doubts regarding the identity of the natural person making a request under Articles 15-21.

(47) In the specific case, the Applicant sought to exercise the right of access provided to them under Section 143(4) of the Act on Information (Bit.) not in relation to their own personal data, but in relation to the personal data of their deceased mother. This, however, resulted in the need to not only verify their own identity but also to prove, in accordance with Section 143(4) of the Bit., that they are the heir of the deceased or a designated beneficiary in the insurance contract.

(48) To support this, the Applicant attached to their letter dated March 3, 2021, sent to the Respondent, a notarized extract of the inheritance distribution decree, which clearly stated that the Applicant is the heir of the deceased. Furthermore, in the letter dated March 5, 2021, the Respondent did not inform the Applicant that they could not identify them.

(49) In contrast, in response to the Applicant's letter dated April 6, 2021, the Respondent disregarded this and requested the Applicant to attach the inheritance distribution decree, which the Applicant did not comply with, and on June 10, 2021, only provided a photocopied part of the complete inheritance distribution decree to the Respondent, which was not accepted. The Applicant ultimately provided the complete inheritance distribution decree to the Respondent on July 4, 2021.

(50) The complete inheritance distribution decree contains significantly more data than the extract regarding the subjects of the inheritance. The extract contains information solely about the claims inherited by the Applicant against [...], while the complete decree names claims against other financial institutions and also identifies a property that is part of the inheritance. The Authority holds the view that the Applicant's personal data includes what they inherited after their mother's death, specifically what constituted the subject of the inheritance transferred to them. However, this is not relevant information for the Respondent, who only required proof of the heir's status.

(51) According to the privacy policy announced by the Respondent with Executive Order No. [...], point 15.5.9.5 states, "To request data as an heir, it is necessary to prove heir status with a final inheritance distribution decree or inheritance certificate. (...) Regarding the data contained in the attached inheritance distribution decree or inheritance certificate, the insurer only needs the data from which the heir status can be established; thus, it is necessary to redact data concerning third parties, which the client must be informed about." The same rule was also included in the Respondent's privacy policy that was in effect between November 18, 2019, and May 13, 2021, in point 15.5.9.5.

(52) In its statement dated June 12, 2023 (NAIH-1245-5/2023), the Respondent stated that it only requires the data from which the heir status can be established, thus such data...

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in such cases, it is not necessary to submit the complete inheritance transfer decision, but it is sufficient to provide an excerpt prepared by the notary to prove the status of the heir. Consequently, due to an administrative error by the Respondent, the Applicant was requested to submit the complete inheritance transfer decision even after the Applicant had already provided the excerpt issued by the notary in March 2021.

(53)

Based on all of the above, the Authority established ex officio that the Respondent violated the principle of data minimization under Article 5(1)(c) of the GDPR when it requested the provision of personal data—specifically, all information related to the inheritance found in the complete inheritance

transfer decision—that were not necessary to achieve the purpose of identification and the exercise of the right of access.

IV.2. Fulfillment of the access request

(54)

Section 143(3) of the Act provides that, for the purposes of the Act, the legal provisions regarding the processing of personal data apply to the processing of data related to deceased individuals. According to Section 143(4) of the Act, the rights of the data subject concerning data related to the deceased individual may also be exercised by the deceased's heir or the designated beneficiary in the insurance contract.

(55)

Thus, Section 143(3) of the Act does not differentiate regarding the rights of data subjects that can be exercised in relation to the personal data of deceased individuals, and it does not set forth stricter rules regarding access, unlike Section 25(1) of the Information Act, which can be considered a special rule in this regard.

(56)

As a result, the Applicant was entitled to exercise the right of access concerning the personal data of the deceased mother, which the Respondent did not dispute following the proof of heirship.

(57)

The issue regarding the fulfillment of the access request submitted multiple times by the Applicant arose from the fact that the Respondent partially anonymized the personal identification data of the Applicant's mother—excluding the place of birth—or replaced it with false data, meaning that based on this information, the Applicant's mother could not be identified using the information available to the Respondent, as confirmed by screenshots from the Respondent's record-keeping systems.

(58)

However, the Applicant attached an excerpt from the account statement of her mother's account held at [...] Bank to her request submitted in person on March 5, 2021, from which the insurance amount was transferred to the Respondent. The transfer notification included the offer number, which re-established the connection between the Applicant's mother and the data of the contract she entered into, meaning that the Applicant provided additional information in accordance with Article 11(2) of the GDPR, which made her mother identifiable concerning the insurance contract.

(59)

Considering that the connection between the Applicant's mother and the contractual data could be restored, the operation performed by the Respondent to overwrite the personal data...

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cannot be considered anonymization, but solely pseudonymization, since according to the preamble (26) of the GDPR, personal data can only be considered anonymized if the data subject can no longer be identified based on it.

(60) Considering that the Applicant's mother became identifiable based on the information provided by the Applicant, and the contractual data became attributable to her, the Respondent should have made available to the Applicant, after verifying the Applicant's status as an heir, the information regarding the reimbursement of the insurance premium found in the [...] system. Consequently, the Authority established ex officio that the Respondent violated Article 15(1) of the GDPR.

IV.3. Termination of the Procedure

(61) The Authority terminates the procedure regarding the Applicant's request, which aimed to compel the Respondent to provide the requested data – when, in what manner, and to which account the insurance premium was refunded – and to fulfill the access request, based on Section 47(1)(c) of the Administrative Procedure Act (Ákr.).

(62) According to Section 47(1)(c) of the Ákr., the Authority shall terminate the procedure if it has

become unnecessary. Considering that the Respondent complied with the Applicant's request during the procedure and informed about the information regarding the disbursement of the contractual amount in its letter dated January 16, 2023, the circumstances justifying the continuation of the procedure no longer exist concerning this request.

IV.4. Consequences of Exceeding the Deadline

(63) According to Section 60/A(1) of the Information Act (Infotv.), the processing time in data protection authority procedures is 150 days. In the present data protection authority procedure, the Applicant's request was completed on September 6, 2022, meaning it was suitable for the procedure to be conducted, thus the starting date of the current procedure was September 7, 2022. The processing deadline – taking into account that, according to Section 60/A(1) of the Infotv., the time from the call for the provision of data necessary for clarifying the facts until its fulfillment is not included in the processing deadline – expired on March 16, 2023.

(64) According to Section 51(b) of the Ákr., if the authority exceeds the processing deadline, it must pay the applicant a sum equivalent to the fee or charge payable for the conduct of the procedure, or in the absence of that, ten thousand forints, and the applicant is also exempt from paying procedural costs. Consequently, since the Authority's procedure is free of charge, the Applicant is entitled to ten thousand forints – to be transferred to a bank account or via postal order, as specified in writing.

IV.5. Legal Consequences

(65) The Authority establishes at the request of the Applicant that the Respondent violated Article 15(1) of the GDPR. The Authority also establishes ex officio that the Respondent violated Article 5(1)(c) of the GDPR. Due to the identified violations, the Authority issues a warning to the Respondent in accordance with Section 75/A of the Infotv.

(66) The Authority orders ex officio the deletion of the entire inheritance transfer decision based on Section 61(1)(a) of the Infotv. and Article 58(2)(g) of the GDPR, as its handling violates the principle of data minimization.

(67) Based on Section 75/A of the Infotv., the Authority exercises its powers as set out in Articles 83(2)-(6) of the General Data Protection Regulation, taking into account the principle of proportionality, particularly that in the case of a first-time violation of the provisions regarding the processing of personal data as defined in legislation or in a binding legal act of the European Union, the remedy for the violation is primarily addressed by warning the data controller or processor in accordance with Article 58 of the General Data Protection Regulation.

(68) The Authority does not find it necessary to impose a data protection fine in this case for the following reasons: the Respondent has violated the GDPR provisions for the first time, and during the procedure, it took action regarding the fulfillment of the Applicant's access request, providing the requested data in its letter dated January 16, 2023, thus taking the necessary steps to remedy the violation. Furthermore, the identified violations are of a negligent nature and can be attributed to administrative errors, and were established solely concerning the Applicant.

(69) Based on all of the above, the Authority decided as stated in the operative part.

V. Other Issues

(70) The Authority's competence is defined by Section 38(2) and (2a) of the Infotv., and its jurisdiction extends to the entire territory of the country.

(71) The decision is based on Sections 80-81 of the Ákr. and Section 61(1) of the Infotv. The decision becomes final upon its communication based on Section 82(1) of the Ákr.

(72) According to Section 112 of the Ákr., and Section 116(1) and Section 114(1), there is a right to legal remedy against the decision and the termination order through administrative litigation.

(73) The rules of administrative litigation are defined by Act I of 2017 on the Code of Administrative Court Procedure (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation

against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)aa of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(74) Section 29(1) of the Kp. and in consideration of this, Section 604 of the Civil Procedure Act applies, as well as the general rules on electronic administration and trust services as defined in Act CCXXII of 2015.

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hereinafter: E-Administrative Procedures Act) § 9 (1) b) point states that the client's legal representative is obliged to maintain electronic communication.

(75) The time and place for the submission of the statement of claim is determined by § 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on § 77 (1)-(2) of the Kp. The court's procedure outside of a hearing in simplified proceedings is based on § 124 (2) c) point and § 124 (5) of the Kp.

(76) The amount of the administrative litigation fee is determined by § 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the prior payment of the fee under § 59 (1) and § 62 (1) h) point of the Itv.

(77) If the Respondents do not properly prove the fulfillment of their prescribed obligations, the Authority will consider that the obligation has not been fulfilled within the deadline. According to § 132 of the Ákr., if the obligated party does not comply with the obligation stated in the final decision of the authority, it is enforceable. The Authority's decision becomes final upon communication according to § 82 (1) of the Ákr. According to § 133 of the Ákr., the enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to § 134 of the Ákr., the enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government ordinance in a municipal authority matter. Based on § 60 (7) of the Infotv., regarding the obligation to perform a specific act, to behave in a certain way, to tolerate, or to cease as stated in the Authority's decision, the enforcement of the decision is carried out by the Authority.

Budapest, October 24, 2023

Dr. habil. Attila Péterfalvi

President

Associate Professor